

M/s Chandrayan Cold Storage v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 28910 of 2014 · **Writ dismissed by reference to Writ-C 30898 of 2016.**

HEADNOTE

Writ challenging a Para 4.20 additional-security demand dismissed by a Division Bench by reference to the order of the same date in Writ-C No. 30898 of 2016. An earlier bench had connected the matter with W.P.(C) No. 51884 of 2009 and restrained the demand pending further orders.

FACTUAL SUMMARY

M/s Chandrayan Cold Storage challenged a 10 April 2014 UPPCL demand notice seeking additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 23 May 2014 a Division Bench connected the writ with W.P.(C) No. 51884 of 2009 and, following an interim order in W.P. No. 51844 of 2009 (Supreme Ceramics), restrained demand of additional security. On 21 March 2017 another Division Bench dismissed the petition by reference to the order of that date in Writ-C No. 30898 of 2016.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

writ dismissed by reference to companion order

HOLDING

The Division Bench dismissed the writ petition challenging a Para 4.20 additional-security demand, directing that orders be seen in the order of the same date in Writ-C No. 30898 of 2016. ¶ 2

PRINCIPLE TAGS

additional-security Writ challenging a Para 4.20 additional-security demand dismissed by a Division Bench by reference to the order of the same date in Writ-C No. 30898 of 2016. An earlier bench had connected the matter with W.P.(C) No. 51884 of 2009 and restrained the demand pending further orders. ¶ 2

procedural-listing-no-construction Writ challenging a Para 4.20 additional-security demand dismissed by a Division Bench by reference to the order of the same date in Writ-C No. 30898 of 2016. An earlier bench had connected the matter with W.P.(C) No. 51884 of 2009 and restrained the demand pending further orders. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD BE DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 2014 bench granted only an interim restraint without prejudice; the 2017 dismissal adopts the order in Writ-C No. 30898 of 2016 without independent reasoning on 4.20. ¶ 2